

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Chelsea Yogerst	Team: Team # 3	CCRB Case #: 201407548	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/24/2014 7:15 PM	Location of Incident: In front of 505 Calhoun Avenue	18 Mo. SOL 1/24/2016	Precinct: 45		
Date/Time CV Reported Fri, 07/25/2014 2:29 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 07/25/2014 2:29 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jimmie Moore	25780	925771	PSA 8
2. POM Paul Kiernan	30498	932865	PSA 8
3. POM Jose Bravo	19687	943022	PSA 8

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Deshawn Edmonds	29310	950369	PSA 8

Officer(s)	Allegation	Investigator Recommendation
A . POM Jimmie Moore	Discourtesy: PO Jimmie Moore spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Jimmie Moore	Abuse: PO Jimmie Moore interfered with § 87(2)(b)'s ability to record an incident.	B . Substantiated
C . POM Jimmie Moore	Abuse: PO Jimmie Moore damaged § 87(2)(b)'s property.	C . Unsubstantiated
D . POM Jose Bravo	Abuse: PO Jose Bravo threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . POM Paul Kiernan	Discourtesy: PO Paul Kiernan spoke rudely to § 87(2)(b)	E . Unsubstantiated

Case Summary

On July 24, 2014, at around 7:15 p.m., § 87(2)(b) was driving when he went into a street entirely blocked by emergency vehicles, and stopped in front of 505 Calhoun Avenue in the Bronx. An off-duty court officer had shot herself in the foot accidentally, and PO Jimmie Moore, PO Paul Kiernan, and PO Jose Bravo, all of PSA8, had responded to the incident. § 87(2)(b) became impatient with the traffic, and honked his horn repeatedly until PO Moore confronted him using numerous derivations of the word “fuck” (**Allegation A**). § 87(2)(b) started recording the interaction with his cell phone, which PO Moore grabbed, and threw onto the dashboard, allegedly cracking it (**Allegation B and C**). PO Bravo also came up to § 87(2)(b)s vehicle and told § 87(2)(b) to keep his mouth shut, or else PO Moore could arrest him (**Allegation D**). PO Kiernan also walked up and used the word “Fuck” towards § 87(2)(b) (**Allegation E**).

§ 87(2)(g)

Mediation and Criminal Histories

Mediation was not presented to § 87(2)(b) due to his allegations of property damage.

The investigator did not have access to § 87(2)(b)s NYSID number; therefore a criminal history search of him could not be conducted.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (enc. A-6).
- PO Jimmie Moore has been a member of the service for 14 years, and there have been no substantiated allegations against him (enc. A-1 – A-2).
- PO Paul Kiernan has been a member of the service for 11 years, and there have been no substantiated allegations against him (enc. A-3 – A-4).
- PO Jose Bravo has been a member of the service for 8 years, and there have been no substantiated allegations against him (enc. A-5).

Civilian Statement

Complainant/Victim: § 87(2)(b) (enc. C-1 – C-9)

- § 87(2)(b) was § 87(2)(b) old at the time of the incident. He is a Hispanic man, § 87(2)(b) and has black hair and hazel eyes.
- § 87(2)(b) was forced to stop because an unmarked vehicle was blocking the lane. There were patrol and fire department vehicles also double parked on the street, but § 87(2)(b) was not aware that an emergency had taken place.
- § 87(2)(b) honked his horn several times to alert PO Moore, who was standing two car lengths away on the sidewalk, that a vehicle was blocking traffic.
- PO Moore came over to § 87(2)(b)s vehicle and said, “What is your fucking problem? What the fuck do you think you’re doing?”
- PO Moore asked § 87(2)(b) for his license and registration, which the latter provided
- § 87(2)(b) informed PO Moore “Keep in mind that I have friends and family on the force and I am also recording you.” § 87(2)(b) later realized that he had not effectively recorded anything.)
- PO Moore took § 87(2)(b)s phone and threw it onto the dashboard, causing its screen to crack.

- After this, PO Bravo came towards § 87(2)(b) and told the latter to keep his mouth shut or PO Moore would give him a bunch of summonses and arrest him.
- PO Kiernan also came over and said to § 87(2)(b) “Who the fuck do you think you are, the president?”
- § 87(2)(b) was summonsed for § 87(2)(b).

Officer Statements

Subject Officers

PO JIMMIE MOORE (enc. D-1 – D-6)

- PO Moore is a black man who is § 87(2)(b), and has black hair and brown eyes. On the day of the incident, he was assigned to PSA8’s Anti-Crime unit with PO Bravo and PO Kiernan.
- Because emergency vehicles had blocked off the entire street, § 87(2)(b) went into the opposing lane, and tried driving past all of them, before being blocked by PO Moore’s unmarked vehicle.
- § 87(2)(b) repeatedly honked his horn and yelled out his window in frustration as PO Moore was clearing the way for the shooting victim to enter the ambulance.
- PO Moore told § 87(2)(b) that his vehicle was on the wrong side of the road, which § 87(2)(b) denied.
- PO Moore asked § 87(2)(b) for his license and registration. § 87(2)(b) initially refused to provide the information, before finally succumbing after PO Moore stated that he could be arrested. § 87(2)(b) stated “What are you going to do, write me a ticket? That’s nothing, I have people on the job.”
- § 87(2)(b) was not acting irate, just arguing back and forth with PO Moore.
- § 87(2)(b) took out his phone to record PO Moore. PO Moore told § 87(2)(b) a few times to put the phone away, before taking the phone out of § 87(2)(b)’s hands, holding it a foot and a half away from his face, and tossing it into the passenger seat of § 87(2)(b)’s vehicle. PO Moore denied tossing the phone onto the dashboard or cracking it.
- PO Moore did not use profanity with § 87(2)(b) nor did he hear any officer do so either.
- The § 87(2)(b) summons issued to § 87(2)(b) was for driving on the wrong side of the road.

PO JOSE BRAVO (enc. F-1 – F-5)

- PO Bravo is Hispanic man who is 5’9” tall, weighs 200 pounds, and has brown hair and brown eyes
- Because § 87(2)(b) kept honking his horn, PO Moore went to speak with him. Meanwhile, PO Bravo got into his and PO Moore’s unmarked vehicle, moved it and parked it, legally.
- PO Bravo noticed § 87(2)(b) and PO Moore’s interaction escalating so he also approached § 87(2)(b)’s vehicle.
- § 87(2)(b) was yelling and cursing, and then told PO Bravo in Spanish that he knew someone on the force and would have the summons taken care of.
- PO Bravo told § 87(2)(b) to calm down, accept the summons, and go to court with it.
- § 87(2)(b) pulled out his cell phone and requested that PO Bravo speak with the individual on the phone. PO Bravo declined, told § 87(2)(b) to put the phone away, and walked away.
- PO Bravo did not know if § 87(2)(b) committed any traffic infractions.
- PO Bravo denied using profanity with § 87(2)(b) and denied hearing any other officer do so either. Neither did he see an officer throw § 87(2)(b)’s phone away.

PO PAUL KIERNAN (enc. G-1 – G-5)

- PO Kiernan is a white man who is § 87(2)(b), and has blonde hair and green eyes.
- While PO Kiernan was clearing the path for Emergency Medical Services to take the shooting victim out to the ambulance, he heard a lot of honking coming from § 87(2)(b)'s vehicle and saw PO Moore go and speak to him.
- § 87(2)(b)'s vehicle had crossed into the oncoming traffic lane to try and go around the emergency vehicles, but was stopped in the middle of the street because he could not get past the police vehicle. The other civilian vehicles had pulled to the side and waited as per protocol.
- PO Kiernan also approached § 87(2)(b)'s vehicle, and heard PO Moore request § 87(2)(b)'s license and identification. § 87(2)(b) however was not cooperating.
- When PO Moore finally obtained § 87(2)(b)'s information, he went back to his unmarked vehicle to write the summons.
- PO Kiernan never used profanity with § 87(2)(b) and did not hear any other officer do so either. He did not see any officer throw § 87(2)(b)'s phone away.

Other Officers

PO Deshawn Edmonds was interviewed (enc. E-1 – E-5), but he did not have any interaction with § 87(2)(b) § 87(2)(g).

Lt. Amanjeet Sandhu was identified as being present for this incident, but did not interact with § 87(2)(b) § 87(2)(b) was contacted (enc. B-3-B-4) and clarified that the first time he saw Lt. Sandhu was after PO Moore had begun to write him a summons and occurred when Lt. Sandhu walked from the rear of § 87(2)(b)'s car and past his vehicle. § 87(2)(b) stated that he wasn't sure if Lt. Sandhu heard what PO Moore said to him but did not think that Lt. Sandhu heard what PO Bravo said to him or saw PO Moore throw his phone. When asked if he believed that Lt. Sandhu heard what PO Kiernan said, § 87(2)(b) replied that PO Moore was the only officer that cursed at him.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(g) [REDACTED]

Explanation of Subject Officer Identification

PO Moore, PO Bravo, and PO Kiernan confirmed their interaction with § 87(2)(b). These officers are black, Hispanic, and white men, respectively, and § 87(2)(b) described them accordingly.

Allegation A – Discourtesy: PO Jimmie Moore spoke rudely to § 87(2)(b)

Allegation D – Abuse of Authority: PO Jose Bravo threatened to arrest § 87(2)(b)

Allegation E – Discourtesy: PO Paul Kiernan spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Moore and PO Kiernan used the profane word “fuck” against him numerous times during their interaction. He also alleged that PO Bravo warned him that PO Moore could arrest him if he did not keep his mouth shut.

All three officers denied the allegations raised against them, and corroborated each other's statements.

§ 87(2)(g)

Consequently, it is recommended that **Allegations A, D, and E** be closed as *unsubstantiated*.

Allegation B – Discourtesy: PO Jimmie Moore interfered with § 87(2)(b)'s ability to record an incident.

It is undisputed that PO Moore threw § 87(2)(b)'s phone. PO Moore explained that he did so for his own safety because in his training as a police officer, he has seen that a cell phone can be used as a weapon,

Patrol Guide Procedure 203-09 (enc. AB-1) requires officers to be courteous and respectful when dealing with the general public.

§ 87(2)(g)

§ 87(2)(g)

Consequently, it is recommended that **Allegation B** be closed as *substantiated*.

Allegation C – Abuse of Authority: PO Jimmie Moore damaged § 87(2)(b)'s property.

§ 87(2)(g)

§ 87(2)(b) alleged that when PO Moore threw his iPhone 4S on to the dashboard, its screen cracked on impact. He stated that his iPhone was inside a thin, clear, plastic case during the incident.

PO Moore admitted to taking § 87(2)(b)'s iPhone, which was in an orange case, away, and tossing it onto the passenger seat. However, he denied throwing the phone onto the dashboard, or cracking its screen.

There were no independent witnesses to this allegation.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation C** be closed as *unsubstantiated*.

Team: **Team 3**

Investigator: _____
Signature _____ Print Chelsea Yogerst _____
Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____